

Court No. - 3

Case :- WRIT - C No. - 18560 of 2022

Petitioner :- Rakshpal

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Rahul Yadav

Counsel for Respondent :- C.S.C.

Hon'ble Surya Prakash Kesarwani,J.

Hon'ble Jayant Banerji,J.

Heard learned counsel for the petitioner, learned standing counsel for the State-respondents and learned counsel for the respondent No.2 and 3.

This writ petition has been filed praying for the following relief:

"(A) Issue a writ, order or direction in the nature of certiorari calling for the records and quash the impugned Recovery Certificate dated 11.12.2020 (Annexure No.1) issued by the respondent no.2;

(B) Issue a writ, order or direction in the nature of certiorari calling for the records and quash the impugned provisional assessment notice dated 15.10.2020 (Annexure No.3) issued by the respondent no.2;

(C) Issue a writ, order or direction in the nature of mandamus directing and commanding the respondents not to conduct any recovery action against the petitioner without following the procedure established by law;"

Learned counsel for the respondent No.2 and 3/ Power Distribution Corporation, states on instructions that the petitioner may file objection against the impugned demand which shall be decided in accordance with law within a time bound period.

In view of the aforesaid and without expressing any opinion on merits of the case of the petitioner, **this writ petition is disposed off** giving liberty to the petitioner to submit his/ her objection under Para 6.8 of U.P. Electricity Supply Code, 2005 before the respondent No.2, within four weeks from today along with a certified copy of this order. In the event such an objection is submitted within the stipulated period, it shall be decided by the respondent No.2 in accordance with law within next four weeks, after affording reasonable opportunity of hearing to the petitioner.

For a period of eight weeks or till disposal of the objection of the petitioner, whichever is earlier, no coercive action shall be taken against the petitioner in pursuance of the impugned demand.

Order Date :- 7.7.2022

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